

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 904

By: Gollihare, Hall, Green,
Seifried, Thompson, Rosino,
Hamilton, and Bullard of
the Senate

7 and

8 Harris and Stinson of the
9 House

10
11 An Act relating to gender transition procedures;
12 defining terms; prohibiting certain use of public
13 funds; proscribing certain reimbursement; prohibiting
14 certain use of state facilities; providing criminal
15 penalty; providing for codification; and declaring an
16 emergency.

17 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

18 SECTION 1. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 1-800 of Title 63, unless there
20 is created a duplication in numbering, reads as follows:

21 A. As used in this section:

22 1. a. "Gender transition procedures" means the following
23 medical or surgical services performed for the purpose
24 of attempting to affirm an individual's perception of
 his or her gender or biological sex, if that

1 perception is inconsistent with the individual's
2 biological sex:

- 3 (1) surgical procedures that alter or remove physical
4 or anatomical characteristics or features that
5 are typical for the individual's biological sex,
6 or
7 (2) puberty-blocking drugs, cross-sex hormones, or
8 other drugs to suppress or delay normal puberty
9 or to promote the development of feminizing or
10 masculinizing features consistent with the
11 opposite biological sex.

12 b. Gender transition procedures do not include:

- 13 (1) behavioral health care services or mental health
14 counseling,
15 (2) medications to treat depression and anxiety,
16 (3) medications prescribed, dispensed, or
17 administered specifically for the purpose of
18 treating precocious puberty or delayed puberty in
19 that patient,
20 (4) services provided to individuals born with
21 ambiguous genitalia, incomplete genitalia, or
22 both male and female anatomy, or biochemically
23 verifiable disorder of sex development (DSD),
24 including but not limited to:

1 (a) 46,XX DSD,

2 (b) 46,XY DSD,

3 (c) sex chromosomes DSDs,

4 (d) XX or XY sex reversal, and

5 (e) ovotesticular disorder,

6 (5) the treatment of any infection, injury, disease,
7 or disorder that has been caused by or
8 exacerbated by the performance of gender
9 transition procedures, whether or not the gender
10 transition procedure was performed in accordance
11 with state and federal law, or

12 (6) the treatment of any physical injury or illness
13 that would, as certified by a physician, place
14 the individual in imminent danger of death or
15 impairment of a major bodily function unless such
16 treatment is performed; and

17 2. "Public funds" means state funds from any source including,
18 but not limited to, appropriations, apportionments, or revenue
19 generated by state agencies through fines, fees, or any other means.

20 B. Public funds shall not be used, granted, paid, or
21 distributed to any entity, organization, or individual for the
22 provision or subsidy of any gender transition procedures, regardless
23 of whether the procedures are provided to a minor or an adult.
24

1 C. The state Medicaid program shall not reimburse or provide
2 coverage for any gender transition procedures, regardless of whether
3 the procedures are provided to a minor or an adult.

4 D. No state property, facility, or building may be used to
5 provide gender transition procedures, regardless of whether the
6 procedures are provided to a minor or an adult.

7 E. Any officer or employee of this state who intentionally
8 violates the provisions of this section shall, upon conviction, be
9 guilty of a misdemeanor.

10 SECTION 2. It being immediately necessary for the preservation
11 of the public peace, health or safety, an emergency is hereby
12 declared to exist, by reason whereof this act shall take effect and
13 be in full force from and after its passage and approval.

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15 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
16 OVERSIGHT, dated 04/16/2026 - DO PASS.
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